



CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

MEMO

TO: Honorable Mayor Patrick Collins, City of Cheyenne
City Council Members

FROM: Cassie L. Pickett, PE, Engineering Manager

DATE: April 17, 2024

SUBJECT: Dutch Brothers - Improvement Agreement

Purpose of Project:

This project is the private development of land located at the southwest corner of Pershing Blvd and McCann Ave for the purpose of a Dutch Brothers.

Reason for Contract Modification:

This agreement was the result of the Dutch Brothers Development Traffic Impact Study noting the need for a right turn lane on Pershing. Dutch Brothers requested to submit cash-in-lieu rather than building the turn lane. This is represented within the referenced agreement.

Estimated Cost:

The total contract amount is \$70,500.00. The funding location will be GL#001-00-0000-20-00613. The Engineer's Department has reviewed the request and respectfully recommends approval of the requested Public Improvements Agreement.

Contract No. _____

IMPROVEMENTS AGREEMENT

THIS AGREEMENT made and entered into this day of _____, 2024, by and between DB Cheyenne, LLC, a Colorado limited liability company (the "Owner"), Elevations Credit Union (the "Holder of a Deed of Trust"), and the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming("City").

WITNESSETH:

WHEREAS, "Cash-in-lieu" shall mean those payments made by Owner in advance pursuant to UDC Sections 4.1.5.b.6 and 4.1.5.b.7 to satisfy in full Owner's, Holder of a Deed of Trust, or the Owner obligations with respect to certain specified Public Improvements as set forth herein.

WHEREAS, the Owner has made proper application and supporting document(s) for request (Exemption from Platting OR Site Development Plan), Engineering Plan Review (PUDC) Number PUDC-23-75 (the "Case") for the property described in the Case (the "Property");

WHEREAS, as a condition of approval of the Case, the Owner is obligated to enter into an agreement with the City that provides that the Owner shall either construct certain public improvements set forth on **Exhibit A** attached hereto and incorporated herein (collective, the "Improvements") or provide a cash-in-lieu Payments of the same (the "Guarantee");

WHEREAS, Cashin-lieu Amounts and Financial Security for Public Improvements. Upon Owner's advance payment of Owner's proportionate fair share of Public Improvements in accordance with UDC Sections 4.1.5.b.6 and 4.1.5.b.7, which payment amounts (the "Cash-in-lieu Amounts") shall be as specified in **Exhibit B**, Owner's financial responsibility for such scheduled Public Improvements shall be deemed permanently satisfied with respect to construction on the Property. The parties agree that the cash-in-lieu Amounts may be utilized by the City for construction of Public Improvements to the area with no limitation on time of completion, except as otherwise specified or required under existing statute, law, code, or ordinance. Furthermore, upon notice to the City, the Owner may construct Public Improvements specified in **Exhibit A** in advance of City completion. The City shall reimburse the Owner for accepted improvements at costs identified in **Exhibit B**. The Financial Security shall be eligible for release upon request by the Owner after inspection and acceptance of installed Public Improvements by the City;

WHEREAS, The Parties agree to the installation of those Public Improvements, associated cost estimates and fee schedules, and dedications or Cash-in-lieu payments for Public Improvement Construction set forth in **Exhibit B**. The Parties agree that the specifications for the Public Improvements delineated in **Exhibit A and B** (including without limitation) timing of

commencement or completion, specific locations of the easements and points of beginning/points of termination of easements, roads and water or sanitary sewer lines, road width, and/or water or sanitary sewer line sizes, may be administratively modified by separate agreement of both Parties without the requirement of Cheyenne City Council hearings or approvals. Administrative approval of such modifications shall not be unreasonably withheld, conditioned, or delayed; and

WHEREAS, the parties desire to enter into this Agreement to satisfy the above condition of approval.

NOW, THEREFORE, for and in consideration of the mutual promises, covenants, and agreements herein set forth, the parties agree as follows:

1. The Owner shall construct and install, at its sole expense, all the Improvements, except any improvements identified on Exhibit A as Cash-in-lieu payments. The Owner shall pay to the City Cash-in lieu payments in the amount set forth on Exhibit A, if any. Such cash- in-lieu shall be paid prior to the issuance of any Certificates of Occupancy.

2. All Improvements shall be constructed in compliance with the following:

- a. All documents submitted prior to or at the time of approval of the Case;
- b. All laws of the United States, State of Wyoming, and the City and its various agencies, affected special districts and/or servicing authorities; and
- c. Such other designs, drawings, maps, specifications, sketches, and other matter submitted to and approved by any of the above-stated governmental entities.

3. To secure and guarantee performance of its obligations as set forth herein, the Owner agrees that there shall be no conveyance, sale, or transfer of title of all or any portion of the Property nor shall certificate of occupancy be issued until improvements and/or cash-in-lieu has been received and approved by the City certifying that the Owner has satisfied any and all terms, conditions, notes, and restrictions set forth on the mylar or any supporting document(s) approved as part of the Case that must be completed by the Owner prior to the issuance of a Certificate of Occupancy, including, without limitation the satisfactory completion of the Improvements or the posting of a Guarantee, or cash-in-lieu for such completion.

4. The Owner and Holder of a Deed of Trust hereby consent and authorize the City to enter onto the Property to construct, install, maintain, and/or replace all or any portion of the Improvements required by the Case. No Guarantee will be accepted for Improvements that lie outside of the Property unless the property owner grants an acceptable easement to the City. The Owner and the Holder of a Deed of Trust hereby unconditionally waive and release the City from any and all claims or other legal liability that arise out of or are attributable to constructing, installing, maintaining and/or replacing the Improvements. This consent, waiver and release extends to the City

and all its officials, attorneys, agents, employees, and contractors of a landscaping or construction firm.

5. The Holder of a Deed of Trust hereby consents to the imposition of the restriction on conveyance, sale, or transfer as set forth above, as well as all other notes and restrictions set forth on the face of the mylar or any supporting document(s). The Holder of a Deed of Trust, if any, further agrees that in the event it acquires title or control over the disposition of all or any portion of the Property, whether through foreclosure or otherwise, it will comply with the terms of the restriction of sale and other such notes and restrictions.

6. The City and any purchaser of all or any portion of the Property shall have the authority to bring an action to compel the enforcement of this Agreement, including the restriction on sale contained herein. Such authority shall include the right to compel rescission of any sale, conveyance, or transfer of any such Property contrary to the provisions of this Agreement.

7. This Agreement may be amended from time to time by a written instrument signed by all parties hereto.

8. This Agreement and all restrictions contained herein shall run with the land and shall extend to and be binding upon all successors, assigns, heirs, and personal representatives of all or any portion of the Property.

9. The parties hereby stipulate and represent that all procedures necessary to authorize the execution of this Agreement have been performed and that the persons signing for each of the parties have been authorized to do so.

IN WITNESS WHEREOF, the parties have hereto set their hands and seals.

Owner

DB Cheyenne, LLC, a Colorado limited liability company

By: _____
Nate Frary, Manager

STATE OF)
) ss
CITY OF)

The foregoing instrument was acknowledged before me this _____ day of _____, 2024, by Nate Frary, as Manager of DB Cheyenne, LLC, a Colorado limited liability company..

Witness my hand and official seal. My commission expires:

Notary Public

Holder of a Deed of Trust

Elevations Credit Union

By: _____
Paul Watkins, Vice President

STATE OF)
) ss
CITY OF)

The foregoing instrument was acknowledged before me this _____ day of _____, 2024, by Paul Watkins as Vice President of Elevations Credit Union.

Witness my hand and official seal. My commission expires:

Notary Public

City of Cheyenne, State of Wyoming

(SEAL)

By: _____
Patrick Collins, Mayor

ATTEST:

Kristina F. Jones, City Clerk

STATE OF)
) ss
CITY OF)

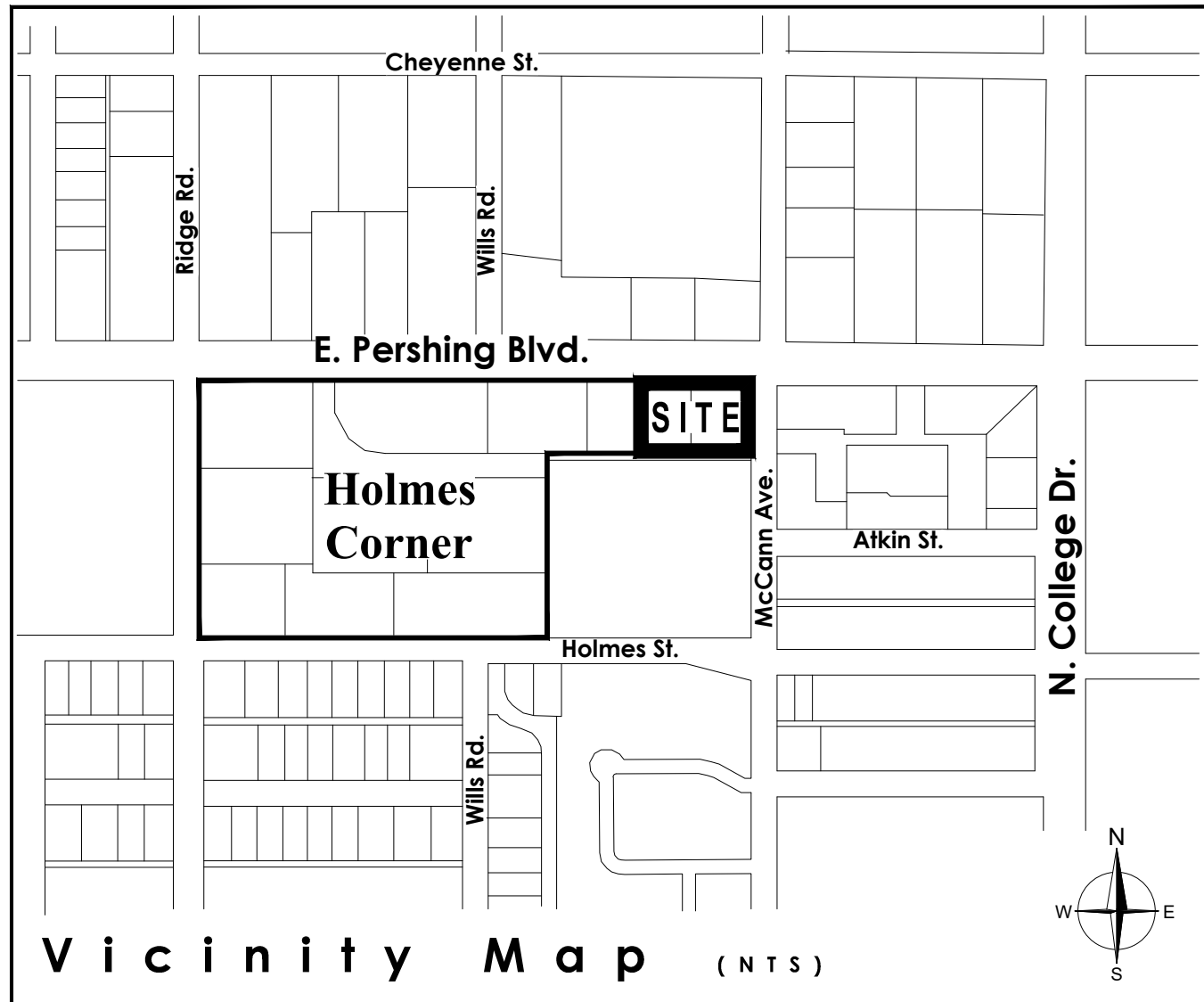
The foregoing instrument was acknowledged before me this _____ day of _____, 2024, by Patrick Collins as Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal. My commission expires:

Notary Public

NOTE: ALL WORK INVOLVING CONSTRUCTION WITHIN THE CITY OF CHEYENNE, INCLUDING WATER AND SANITARY SEWERS AND APPURTENANCES, ARE SUBJECT TO THE FINAL APPROVAL AND ACCEPTANCE TO THE CITY OF CHEYENNE ENGINEER AND THE CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES.

WORK SHALL BE GOVERNED BY: CITY OF CHEYENNE AND BOARD OF PUBLIC UTILITIES CONSTRUCTION SPECIFICATIONS AND STANDARD DRAWINGS (CURRENT EDITION).



Legal: Lot 9, Block 1, Holmes Corner
Owner: Healthworks
Mailing: 2508 E. Fox Farm Rd., 1A
Cheyenne, WY 82007
Street: TBD E. Pershing Blvd.
Zoning: MUB (Cheyenne)
Use: Vacant

Proposed Drainage Swale per Civil Plans
(Any required easements will be created
via separate instrument concurrently with
the EPR process)

Approx. Limit of Disturbance: Reseed disturbed areas
per Note 2 (Native Seed) on Landscape Plan

Ex. Drainage Pan to Remain

Site Plan Legend

Proposed Concrete Pavement
Proposed Asphalt Pavement
Proposed Road Base
Proposed Masonry Wall - Match Bldg.

Transformer
(6' x 7' Pad)
ADA Ramp
Bike Racks
per Sheet 3

Grease Trap per
Architect; Install Clean-
outs as Req'd
Parking Lot Light Fixture
(See Lighting Plan)

Site Plan

Notes

- Base Information:** Boundary and base information, including plat information, is per Steel Surveying. Underground utilities as shown are not guaranteed to be accurate. Off-site base information, including lane stripes in Pershing Blvd. and curb & gutter on opposite sides of McCann & Pershing were digitized from aerial photography.
- Ownership & Maintenance:** Site improvements shown on this drawing are to be owned and maintained by the Owner or Assigns.
- Architecture:** Restaurant building is per R4 Architects, 2023. See Building Elevations for compliance with UDC Section 6.7, trash enclosure design, and height warning bar.
- Grading, Drainage, & Utilities:** Grading, drainage, and utility design provided by Lovas Engineering, P.C., may be adjusted during the construction permitting process following approval of this Site Plan without necessitating its revision. Refer to Building Mechanical drawings for wet utility services entering buildings.

- Vehicular Access:** The existing access at McCann Avenue is proposed to remain, except as modified above. No additional right of way dedication is proposed. Vehicular access through the property will be permitted as required when Lots 9 & 10 are improved.
- Lighting:** Light locations shown are preliminary; pending updated lighting design by lighting & electrical consultant. Lighting plans will be submitted with the building permit application and will comply with UDC Section 6.4.
- Parking:** Parking is reserved for employees and patrons. Parking may be signed as "Reserved" or "Employees Only" at Owner discretion without amending this plan.
- Trash Vehicle Access:** Trash vehicles may enter the property from McCann, access the trash enclosure for front-loader use, back up, and exit the property to E. Pershing Blvd. via the 32' width mutual access easement gravel drive while facing forward.

Impervious Area Calculation

Lots 11 & 12 Combined	
Maximum Impervious Area (90% of ±39,057 SF)	35,151 SF
Building Footprint (outside edge of foundation)	±983 SF
Concrete (walks, curbs, piers, seating areas)	±22,417 SF
Asphalt	- 0 -
Retaining Wall Cap (Impervious)	±261 SF
Road Base	±243 SF
Total Impervious Area:	±23,904 SF (61.2%)

Contractors: The above quantities are for on-site improvements only and may be adjusted with civil construction plans. Refer to approved civil construction plans for final quantities, including in public ROW.

Open Space Approach

Per UDC §6.7.4, Open Space is required at 5% of the building footprint or a minimum of 47 SF. A covered outdoor seating area is proposed north of the building in conjunction with the walk-up service window. Outdoor furniture, seating, and/or decorative paving may be used to define the space. Other amenities may be installed at the Owner's discretion without amending this Site Plan.

Gross Courtyard Area:	±403 SF
Multiplier (Table 4-16):	x 1.3
Credited Open Space Area:	524 SF

Legal: S 143' of Tract 19, Sunnyside Addition
Owner: Dry Creek Dental Properties, LLC
Mailing: 3708 E. Pershing Blvd.
Cheyenne, WY 82003
Same
Street: MUB (Cheyenne)
Zoning: Medical Office

Legal: Por. of Tract 20, Sunnyside Addition 2nd
Owner: Karen's Properties, LLC
Mailing: POB 20081
Cheyenne, WY 82003
Street: 3306 McCann Ave
Zoning: MUB (Cheyenne)
Use: DT Restaurant

Estimated Quantities in Pershing ROW

Asphalt Removed & Replaced	±3,027 SF
24" Concrete Curb Removed & Replaced	±306 LF
6" Width Concrete Sidewalk (attached / detached)	±1,862 SF
Landscaped Area (north of walk)	±2,008 SF
Reset School Zone Flashing Light	1 Ea.
Reset Ex. Fire Hydrant	1 Ea.
ADA Ramp / Crossing @ McCann	2 Ea.

Note: Fee-In-Lieu improvements (shown as red) are schematic and intended for estimating purposes only.

Decal Lane @ 12' Width
Future Curb & Gutter
Remove Ex. Curb & Gutter
Approx. Limits of Work

Exhibit A

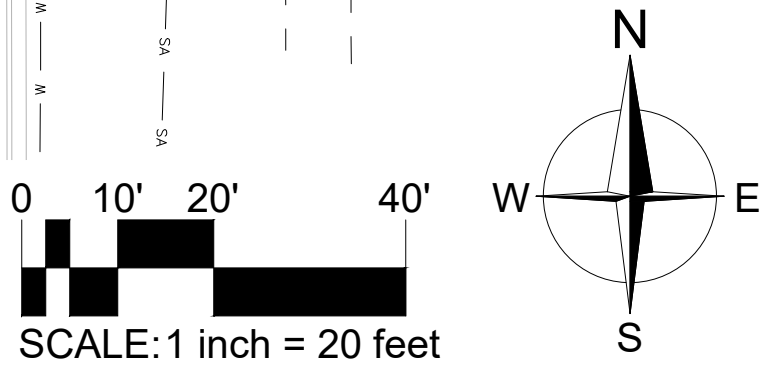


Ex. Curb & Gutter to Remain in Place w/ Dutch Bros. Improvements
Ex. Walk to Remain
Reset Ex. Hydrant
Connect to Ex. Walk per Civil
Ex. Walk to Remain
Monument Sign Pad (Final Size & Location TBD per Sep. Permit)
Align Bike Parking w/ Bldg Corner
Rooftop Canopy
Ex. Fiber Optic Pedestal to Remain

Legal: Lot 5, Block 1, Pershing
Marketplace 2nd Filing
Owner: PER CO TWO, LLC
Mailing: POB 1007
Cheyenne, WY 82003
Street: 300 Pershing Blvd.
Zoning: MUB (Cheyenne)
Use: Ret. / Comm.

Legal: Lot 1, Block 1, Pershing
Marketplace 3rd Filing
Owner: Pershing Partners, LLC
Mailing: POB 1007
Cheyenne, WY 82001
Street: N/A
Zoning: MUB (Cheyenne)
Use: Parking

Legal: Lot 2, Block 1, Pershing
Marketplace 3rd Filing
Owner: Pershing Partners, LLC
Mailing: 2120 Carey Ave.
Cheyenne, WY 82001
Street: N/A
Zoning: MUB (Cheyenne)
Use: Stormwater Detention



Development Summary

Legal Description:
Property Address:
Property Owner:

Lots 11 & 12, Block 1, Holmes Corner
None Assigned
HEALTHWORKS
2508 E. Fox Farm Rd., Suite 1A
Cheyenne, WY 82007
Lot 12 - Drive-Through Coffee Service
Lot 11 - Commercial & Public Parking Facility
MUB - Mixed Use Business (City of Cheyenne)
Mixed Use - Commercial

Proposed Use:
Existing / Proposed Zoning:
Land Use Plan Designation:

Lot 11 Area: ±18,323 SF
Lot 12 Area: ±20,734 SF
Total Project Area: ±39,057 SF
(±0.90 Ac.)

Building Footprint Area: ±940 SF
Floor Area Ratio (Lot 11): N/A
Floor Area Ratio (Lot 12): 0.045 FAR

Parking Calculation
Required: 5 Sp. / 1,000 SF
+ 0.5 Sp. / Employee @ Max Shift
(overlapping shifts of 10 employees ea.)

Minimum Parking Permitted: 15 Sp.
Maximum Parking Permitted: 20 x 0.5 = 10 Sp.
90% of Requirement = 14 Sp.
125% of Requirement = 19 Sp.

Proposed Parking
15 Sp.
+ Bike Parking
(total includes 1 ADA sp.)

Sheet Index

- Site Plan
- Landscape Plan
- Site & Landscape Plan Details

Canopy Trees

Coniferous Trees

Ornamental Trees

Deciduous Shrubs

Evergreen Shrubs

Ornamental Grasses

Other

Steel Edging:	±173 LF
Landscape Mulch:	±3,408 SF
Native Seed:	±11,745 SF (on site; right of way not calculated)

Provided Pervious Area Calculation:

Prop. Native Turf:	±11,745 SF
Prop. Dec. Shrubs:	NC*
Prop. Evg. Shrubs:	NC*
Prop. Per. / Orn. Grasses:	NC*
Total Landscaped Area:	> 75%

(* NC = Not Calculated; Native Turf alone exceeds requirement)

Required Tree Points Calculation

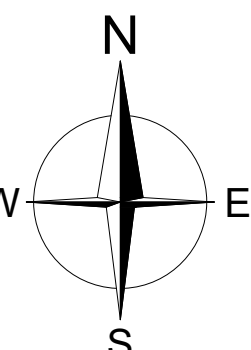
Required Non-Tree Points Calculation

Site Area x 0.10 / 500			
±39,057 SF			
Proposed:	x	0.10 / 500 =	7.81 pts
18 Dec. Shrubs	@ 0.25 pts ea.	=	4.50 pts
22 Evg. Shrubs	@ 0.25 pts ea.	=	5.50 pts
128 Orn. Grasses	@ 0.15 pts ea.	=	19.20 pts
±11,745 SF Native Turf @ 0.50 pts / 500 SF		=	11.75 pts
	Credited		40.95 pts

None Required: < 30 Spaces; 8' Buffer @ Front & Side
in lieu of landscape islands

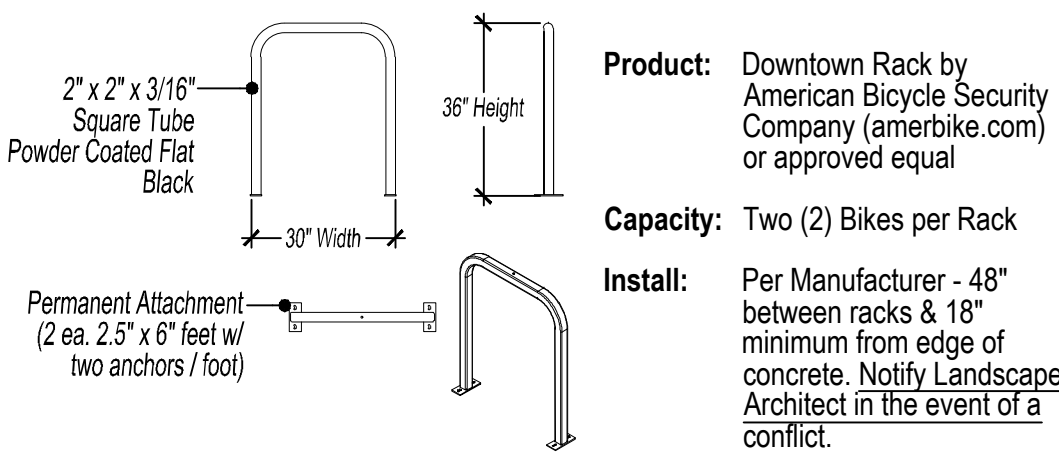


- 0 10' 20' 40'
- SCALE: 1 Inch = 20 feet



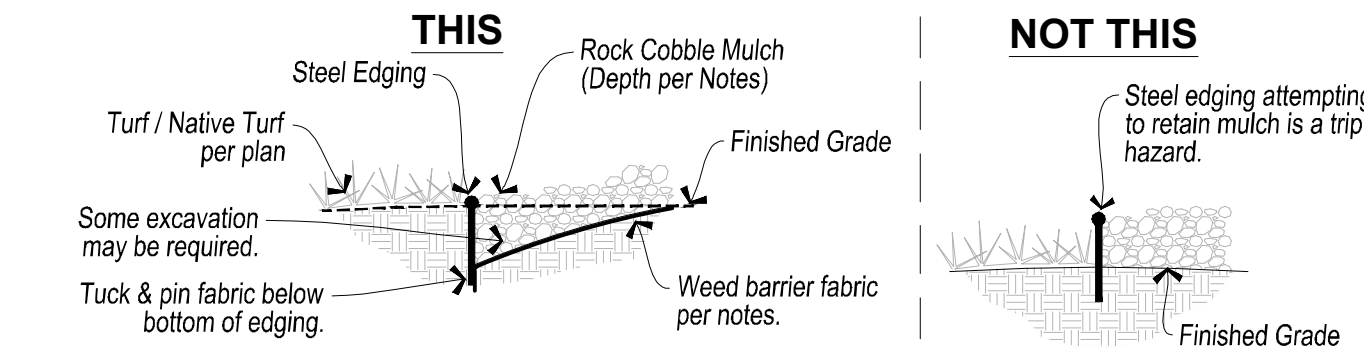
Refer to Details on Sheet 3

2300GDB-SitePlan-Rev.dwg and dwg - 12/07/2023 11:20 AM LRM
THIS DOCUMENT IS AN INSTRUMENT OF PROFESSIONAL SERVICE PREPARED FOR THIS PROJECT. PALMA LAND PLANNING, LLC SHALL BE HELD HARMLESS AND NOT BE RESPONSIBLE FOR ANY ERRORS, OMISSIONS, OR INADEQUACIES ARISING FROM MODIFICATION AND/OR REUSE BY OTHERS. DO NOT BID OR BUILD FROM DRAWINGS NOT STAMPED AND SIGNED BY A LICENSED LANDSCAPE ARCHITECT.



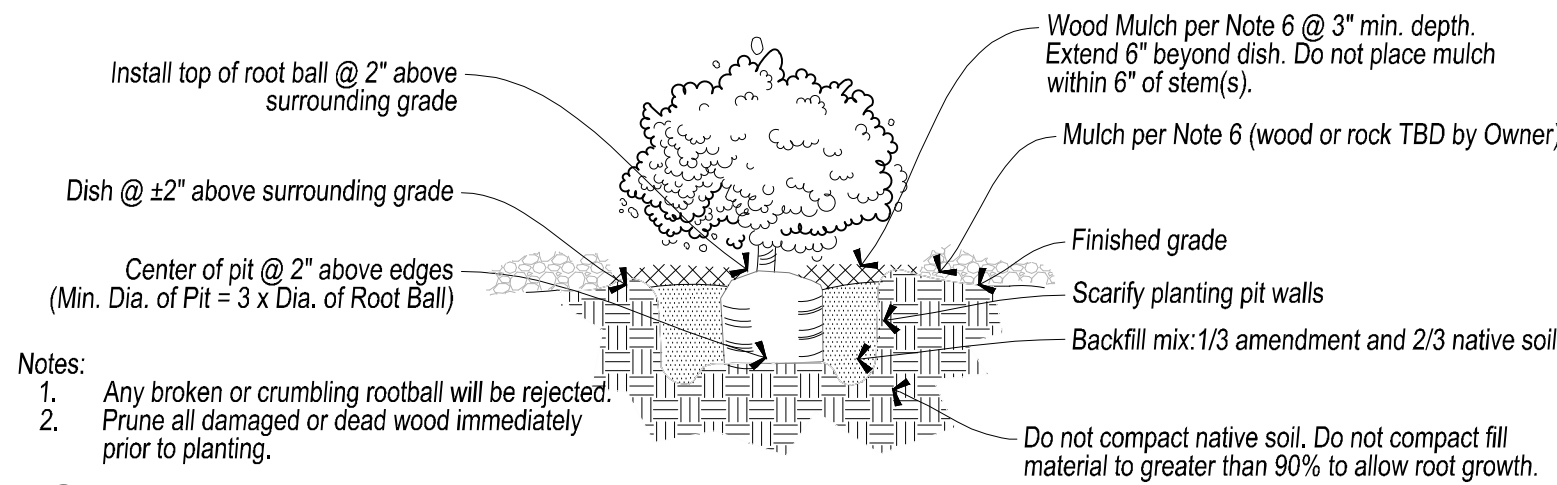
Bike Rack Detail

NTS



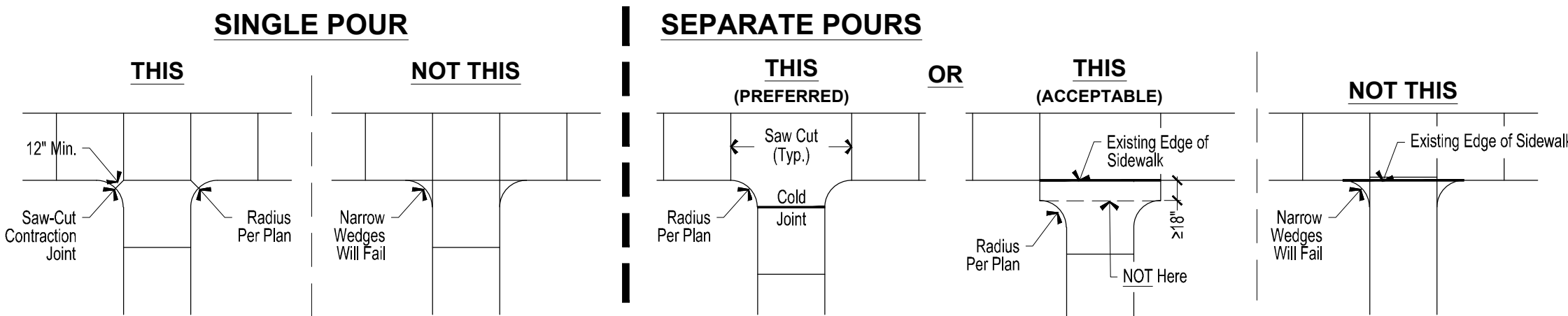
Steel Edging Installation Detail

NTS



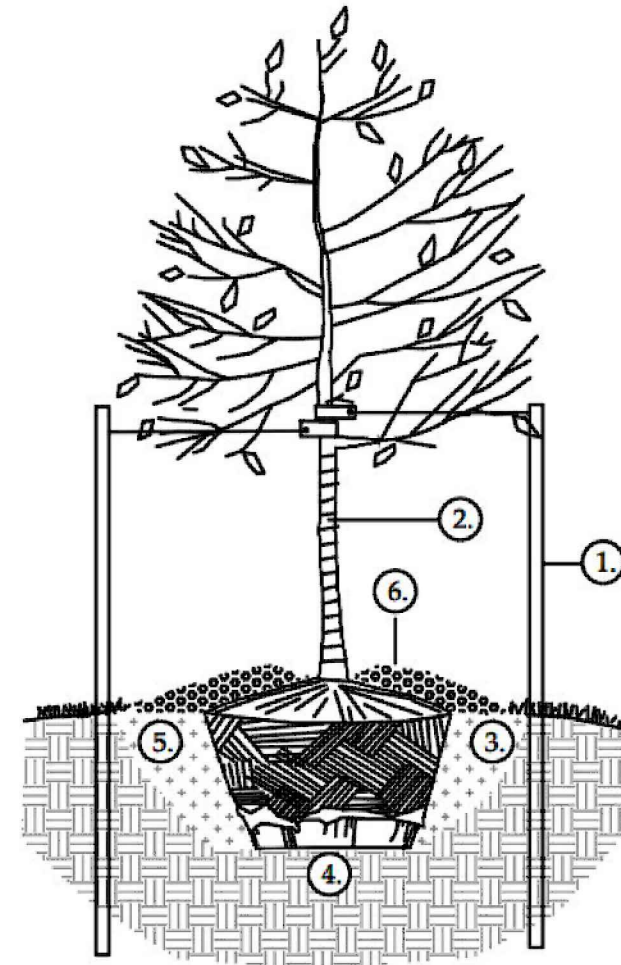
Shrub Planting Detail

NTS



Sidewalk Intersection Detail

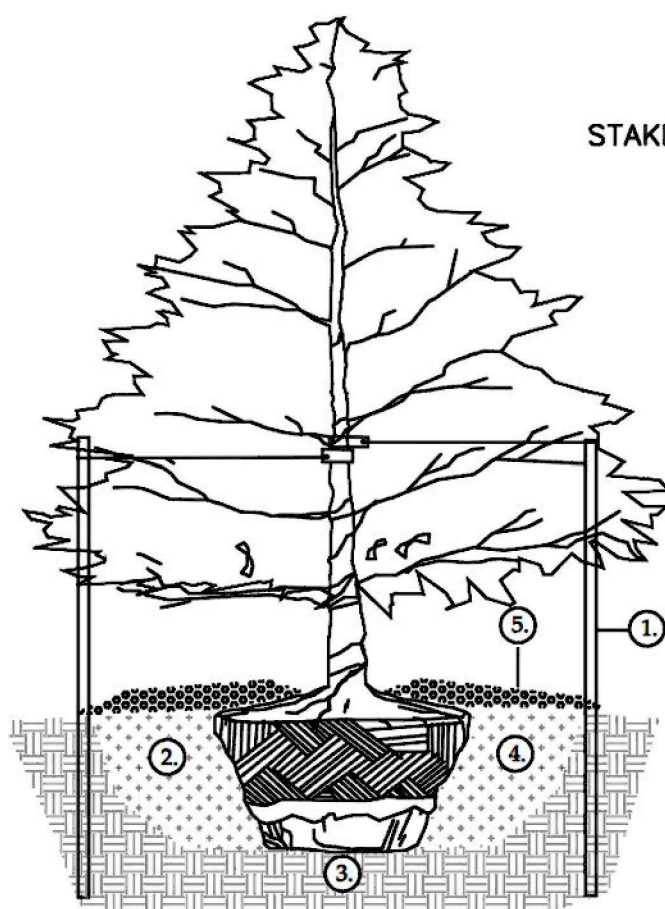
NTS



ALL TREES PLANTED WITHIN THE PUBLIC RIGHT OF WAY SHOULD BE A MINIMUM OF 1.5 - 2 INCH CALIPER.

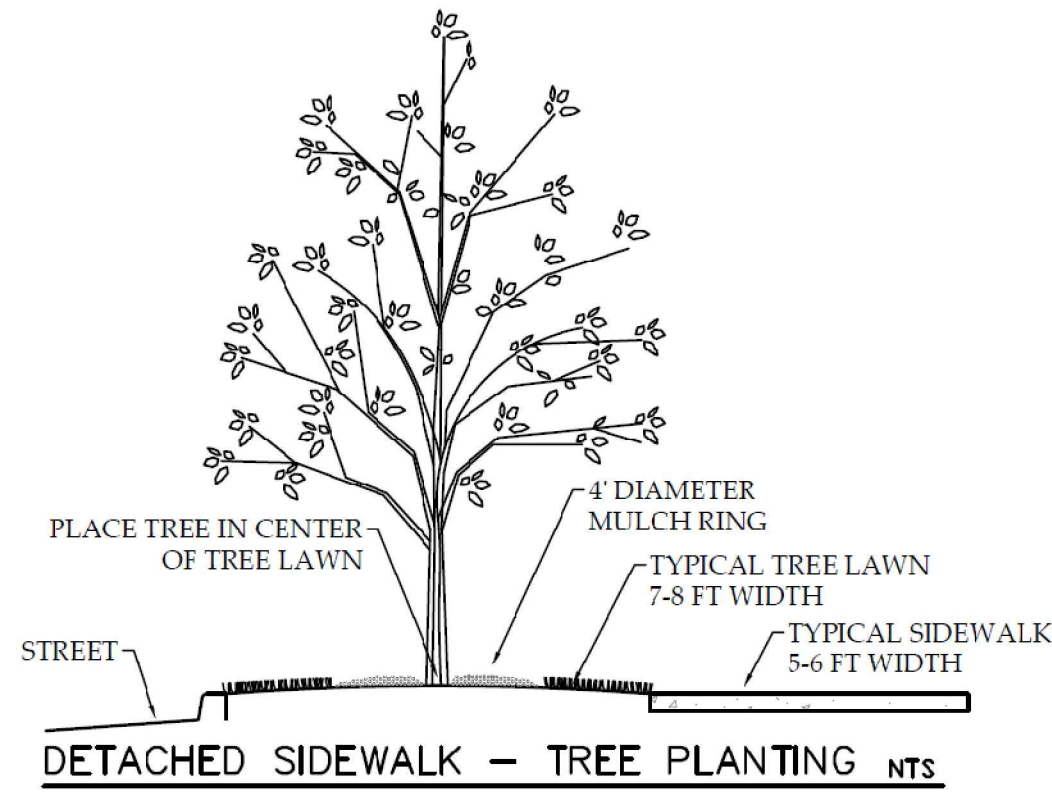
Deciduous Tree Planting Detail

(City of Cheyenne) NTS



Evergreen Tree Planting Detail

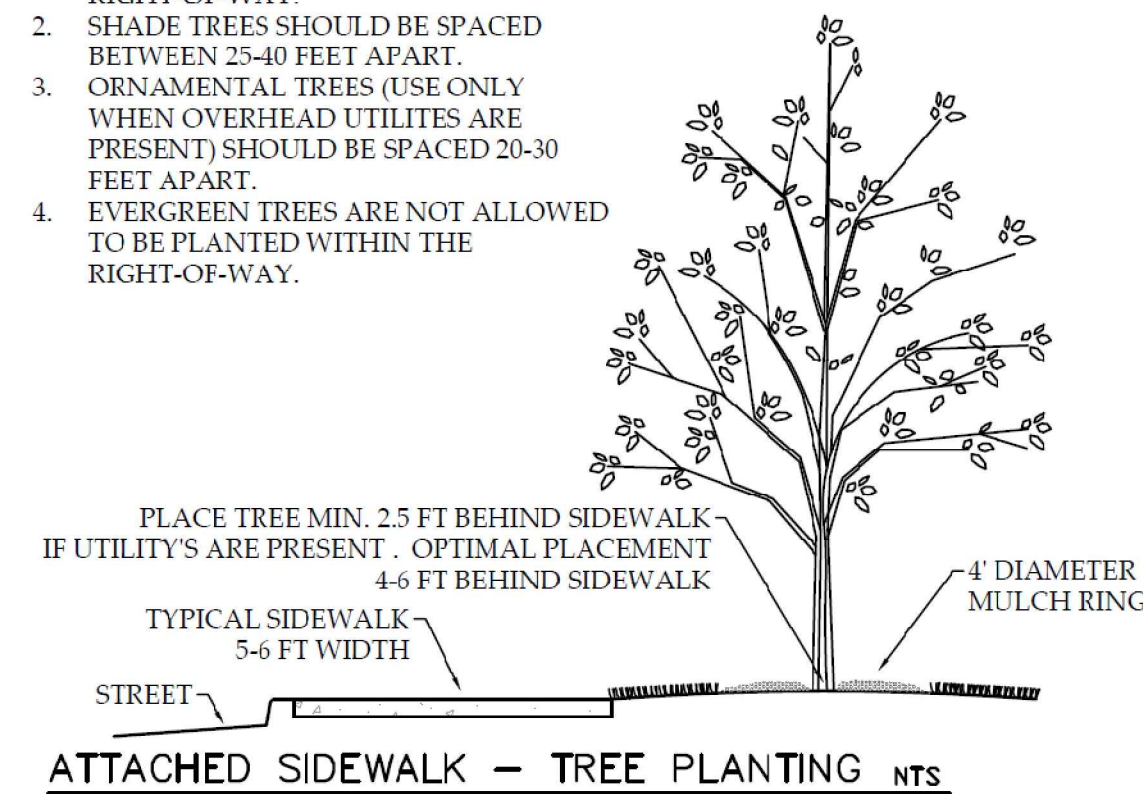
(City of Cheyenne) NTS



DETACHED SIDEWALK - TREE PLANTING

NTS

1. A PERMIT (FREE OF CHARGE) FROM THE CHEYENNE URBAN FORESTRY DIVISION (637-6428) IS REQUIRED PRIOR TO PLANTING IN THE PUBLIC RIGHT-OF-WAY.
2. SHADE TREES SHOULD BE SPACED BETWEEN 25-40 FEET APART.
3. ORNAMENTAL TREES (USE ONLY WHEN OVERHEAD UTILITIES ARE PRESENT) SHOULD BE SPACED 20-30 FEET APART.
4. EVERGREEN TREES ARE NOT ALLOWED TO BE PLANTED WITHIN THE RIGHT-OF-WAY.

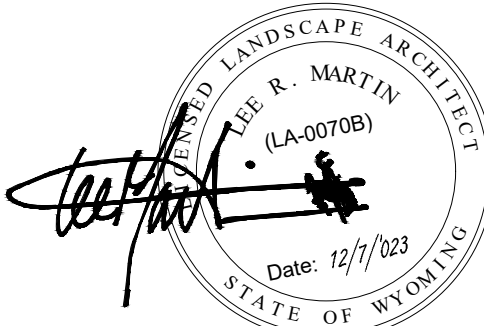


ATTACHED SIDEWALK - TREE PLANTING

NTS

Street Tree Planting Details (Attached & Detached Walk Scenarios)

(City of Cheyenne) NTS



1775 Goodnight Trail | Suite 210
Cheyenne, Wyoming 82007
info@palmlandplanning.com | 307-996-9281

Land Planning
SITE & SUBDIVISION DESIGN
ZONING | LANDSCAPE ARCHITECTURE

PALMA

Dutch Bros. at Holmes Corner
SITE PLAN
L11-12, B1, Holmes Corner, Cheyenne, WY

D8 Holdings LLC
Attn: Mr. Nate Frary
2039 S. Timberline Rd.
307-659-0260 | Wyo@d8holdings.com

Prepared for:
DUTCHBROS

Project No.
23005

Sheet Title
Site & Landscape Plan Details

Date: 12/7/2023
3 of 3



Mrs. Cassie Pickett, P.E. – Senior Staff Engineer
City of Cheyenne Engineering Department
Via:

City of Cheyenne OpenGov Platform

DUTCH BROS COFFEE – DECEL LANE ESTIMATE (PUDC-23-75)

12/6/2023

Dear Mrs. Pickett,

In response to comment from the City Engineering Dept. during the EPR process for the above referenced project, below is a list of bid items for probable construction costs.

*It should be noted that opinions of probable construction costs rendered by Engineer represent our reasonable professional engineering opinion and furnished for general guidance. Engineer makes no representation, warranty, or guarantee, expressed nor implied, as to the accuracy of such opinions as compared to bid or actual costs.

Please note that civil design for the deceleration lane has not been completed at this time. The estimated quantities for civil infrastructure are based upon planimetric design by Palma Land Planning. Lovas Engineering, PC opinion of approximate construction costs have been derived using the following assumed key parameters:

- 6" asphalt over 8" Grading 'W' for all asphalt pavement (3" grading 'A' / 3" grading 'D')
- 277 LF type 'A' curb & gutter
- 275 LF saw cutting
- 110 CY unclassified excavation
- (1) 20' radius curb fillet
- (1) concrete ADA ramp with detectable warning plates

The estimate also includes estimated contractor fees such as bonds/insurance, mobilization, potholing utilities, force account, traffic control, stormwater management and construction management. The estimate is based on present value and does not account for inflation in construction materials or labor costs. The estimate does not include engineering, planning or consulting fees.

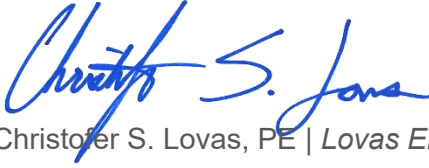
Engineer's Opinion of Approximate Construction Costs:

\$47,000.00

150% = \$70,500.00

If you have any questions or require additional information, please feel free to contact me directly.

Respectfully Submitted,



Christopher S. Lovas, PE | *Lovas Engineering, PC*